

25NNCV01077 25NNCV01077

County: los-angeles

Division: Civil Law and Motion

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Case Number: 25NNCV01077 Hearing Date: September 11, 2026 Dept: D

TENTATIVE RULING

Calendar: 5

Date: September 11, 2026

Case No: 25NNCV01077 Trial Date: June 1, 2027

Case Name: Arce v. Granville Management Group, Inc., et al.

MOTION TO COMPEL PHYSICAL EXAMINATION OF PLAINTIFF

[CCP § 2032.240]

Moving Party: Defendants, Granville Management Group & Granville Restaurant Partners, LLC

Responding Party: Plaintiff, Luis Javier Arce

RELIEF REQUESTED:

Compel Plaintiff to appear for a physical examination.

CAUSES OF ACTION: from Form Complaint

1) General Negligence

2) Premises Liability

SUMMARY OF FACTS:

The Complaint alleges that on March 21, 2023, Luis Javier Arce ("Plaintiff") was on the premises of defendants Granville Management Group, Inc., Granville Restaurant Partners, LLC, and I C Properties LLC, (collectively, "Defendants") located at 12345 Ventura Blvd., North Hollywood, CA 91604. Plaintiff alleges that he was ascending the exterior steps within the subject premises when he stepped on an unknown substance causing him to slip and fall, thereby causing Plaintiff to endure severe injury and pain.

ANALYSIS:

"In any case in which a plaintiff is seeking recovery for personal injuries, any defendant may demand one physical examination of the plaintiff, if both of the following conditions are satisfied: (1) The examination does not include any diagnostic test or procedure that is painful, protracted, or intrusive. (2) The examination is conducted at a location within 75 miles of the residence of the examinee." (CCP, § 2032.220 subd. (a).)

Defendants bring this motion on the grounds that Plaintiff failed to appear for his physical examination on February 24, 2026. (Schrader Decl., ¶ 4, Ex. D.) Defendants concede that "the parties have reached an agreement on an alternative date for the physical examination, which is set for June 9, 2026" and assert that they "filed this motion in abundance of caution should Plaintiff fail to appear for [the] new examination date." (Mot., p. 2:9-11.) Defendants argue that they are entitled to repayment of the \$750.00 cancellation fee for Plaintiff's failure to attend the February 24, 2026 examination as well as attorney's fees associated with bringing this motion. (Mot., pp. 8:1-11:17.)

In the opposition, Plaintiff asserts that he appeared for and completed the June 9, 2026 medical exam. (Brown Decl., ¶ 13, Ex. A.) Plaintiff further asserts that sanctions are not warranted because notice of the February 24, 2026 exam was sent to an incorrect email address for Plaintiff's counsel (jacob@downtownlaw.com instead of jacob@downtownlalaw.com) and thus Plaintiff never received notice of the February 24, 2026 appointment. (Schrader Decl., ¶ 3, Exs. A-B.) The email was also sent to three paralegals, who also appear on the electronic service list for Plaintiff. (Schrader Decl., ¶ 2, Exs. A-B.) California's e-service rules do not explicitly address whether electronic service is defective when a document is transmitted to only some, but not all, of the email addresses that a party has designated for service. (CCP, § 101.6; CRC, rule 2.251.) Generally, the target of proper e-service for a represented party is counsel, not firm staff. As a practical matter, however, notice of the appointment was successfully served on three of the four parties on the service list, including the staff member who originally offered and confirmed Plaintiff's availability for February 24, 2026. Plaintiff's failure to appear seems to be a matter of miscommunication by counsel, rather than a genuine lack of notice of the appointment date.

Nonetheless, filing a motion to compel a physical examination where Plaintiff had already agreed to submit to the examination is premature. Defendants state that they "filed this motion in abundance of caution should Plaintiff fail to appear for [the] new examination date." (Mot., p. 2:11.) As Plaintiff did in fact appear for the new examination date, the motion is DENIED as MOOT.

The Court reminds the parties that civil discovery is intended to be a self-executing system with minimal judicial intervention. (See Volkswagenwerk Aktiengesellschaft v. Superior Ct. (1981) 122 Cal.App.3d 326, 331; Clement v. Alegre (2009) 177 Cal.App.4th 1277, 1291-1292.)

Request for Sanctions

"The court shall impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel response and compliance with a demand for a physical examination, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust." (CCP, § 2032.240 subd. (c).)

The Court will GRANT Defendants' request to recover the \$750.00 cancellation fee for Plaintiff's failure to appear at the original appointment date. Because the Court has otherwise denied the motion as unnecessary and moot, the remaining request for sanctions is DENIED.

RULING:

Defendants Granville Management Group & Granville Restaurant Partners, LLC's Motion to Compel Physical Examination of Plaintiff is DENIED as MOOT.

Plaintiff is ordered to remit the \$750.00 cancellation fee to Defendants within 15 days of this order. Counsel for moving party is ordered to prepare an order for sanctions and submit it on eCourt by 3:00 PM today in accordance with this order.

DEPARTMENT D IS CONTINUING TO CONDUCT AND ENCOURAGE

VIDEO APPEARANCES

If you wish to appear remotely on LACourtConnect, you may register by visiting www.lacourt.ca.gov to schedule a remote appearance. Please note that LACourtConnect offers free audio and video appearances. Department D is now requiring either live or VIDEO appearances, not audio appearances.